

THOMAS, J., concurring

tinely and explicitly created offices by statute. See, *e.g.*, § 35, 1 Stat. 92–93 (creating the offices of Attorney General and U. S. Attorney for each district); see also §§ 1–2, *id.*, at 50 (creating offices of Secretary of War and his Chief Clerk); ch. 12, § 1, *id.*, at 65 (creating offices within the Department of Treasury for Secretary of the Treasury, a Comptroller, Auditor, Treasurer, Register, and Assistant to the Secretary). Still today, Congress creates the offices that the Executive Branch may fill. For example, Congress has created several offices within the Department of Justice, including the offices of the Attorney General, Deputy Attorney General, Associate Attorney General, Solicitor General, and Assistant Attorneys General. See 28 U. S. C. §§ 503–506. For some agencies, Congress has also granted the agency head the power to “appoint such officers and employees . . . as are necessary to execute the functions vested in him.” 7 U. S. C. § 610(a) (Department of Agriculture); see also, *e.g.*, 20 U. S. C. § 3461 (Department of Education); 42 U. S. C. § 913 (Department of Health and Human Services).

In the past, Congress has at times expressly created offices similar to the position now occupied by the Special Counsel. Congress created an office for a “special counsel” to investigate the Teapot Dome Scandal and pursue prosecutions. See ch. 16, 43 Stat. 6. And, a statute provided for “the appointment of an independent counsel” that we addressed in *Morrison v. Olson*. See 28 U. S. C. § 592. That statute lapsed, and Congress has not since reauthorized the appointment of an independent counsel. See § 599.²

We cannot ignore the importance that the Constitution places on *who* creates a federal office. To guard against tyranny, the Founders required that a federal office be “estab-

²To be sure, a few Presidents have appointed “special prosecutors” without pointing to any express statutory authorization. See generally T. Eastland, *Ethics, Politics and the Independent Counsel* 8–9 (1989) (describing past uses of special prosecutors). But, this Court had no occasion to review the constitutionality of those prosecutors’ authority.